

Tentative Rulings for Department 503

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Tentative Ruling

Re: **Wheeler v. Perkins**
Superior Court Case No. 23CECG01040

Hearing Date: August 5, 2026 (Dept. 503)

Motion: by Defendant for Judgment on the Pleadings

Tentative Ruling:

To grant the motion for judgment on the pleadings, with plaintiff granted leave until Wednesday August 12, 2026 to file a third amended complaint. (Code Civ. Proc. § 438.)

Explanation:

Plaintiff Shawn Wheeler filed the Second Amended Complaint on February 26, 2024¹ using a Judicial Council form complaint. In paragraph 10 plaintiff failed to indicate the causes of action he is alleging against defendant. The Second Amended Complaint also does not include any cause of action attachments alleging any claims against defendant or providing the factual basis for those claims.

Use of the Judicial Council form complaint requires the use of attachments for alleging the causes of action. Paragraph 10 of the form pleading states, "[t]he following causes of action are attached and the statements above apply to each **(each complaint must have one or more causes of action attached)**: ..." (Emphasis added.) The plaintiff is to check the boxes indicating the causes of action being alleged (or specify others in the "other" section), and add to the form complaint attachments alleging the elements and facts pertinent to each cause of action.

Having failed to include any cause of action attachments, the complaint fails to state facts sufficient to state any cause of action.

The motion for judgment on the pleadings is granted. Leave to amend is granted so that plaintiff can identify what cause(s) of action he is pursuing and include the relevant cause of action attachments if he opts to utilize the Judicial Council form complaint again.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

¹ The court notes that the Second Amended Complaint was filed without leave of court and is subject to strike. (Code Civ. Proc., §472.) In light of the First Amended Complaint suffering the same defects as found in the Second Amended Complaint, the court will proceed with the merits of the motion for judgment on the pleadings.

